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Nos. 99-5 and 99-29

In The
Supreme Court of the United States

UNITED STATES OF AMERICA,

Petitioner,

vs.

ANTONIO MORRISON, et al.,

Respondents.

CHRISTY BRZONKALA,

Petitioner,

vs.

ANTONIO MORRISON, et al.,

Respondents.

On Writ Of Certiorari To The United States
Court Of Appeals For The Fourth Circuit

MOTION FOR LEAVE TO FILE BRIEF AMICI CURIAE
AND BRIEF AMICI CURIAE OF EQUAL RIGHTS
ADVOCATES; AMERICAN ASSOCIATION OF
UNIVERSITY WOMEN; AMERICAN FEDERATION OF
STATE, COUNTY AND MUNICIPAL EMPLOYEES, AFL-
CIO; BREAK THE CYCLE; BUSINESS AND
PROFESSIONAL WOMEN/USA; THE JUNIOR LEAGUE
OF BIRMINGHAM, INC.
[AND ADDITIONAL AMICI LISTED ON INSIDE FRONT
COVER] IN SUPPORT OF PETITIONERS

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**MOTION FOR LEAVE TO FILE BRIEF *AMICI CURIAE*
AND BRIEF *AMICI CURIAE*
IN SUPPORT OF PETITIONERS**

Amici hereby respectfully move for leave to file the attached brief *amici curiae* in this case. The consents of the Solicitor General, counsel of record for petitioner the United States, counsel of record for petitioner Christy Brzonkala, and counsel of record for respondent Antonio Morrison have been obtained. The consent of Joseph Graham Painter, Jr., attorney for respondent James L. Crawford, was requested but refused.

The interest of *amici* in this case arises from the fact that they are women's, civil rights, business, labor, medical and legal services organizations that recognize the deep economic impact of violence against women and are strongly committed to eliminating gender-based violence, a goal the 1994 Violence Against Women Act ("VAWA") – and, in particular, the statute's civil rights remedy for victims of gender-motivated violence – is designed to help achieve.

The brief *amici* propose to file supplements the arguments raised by the petitioners. Specifically, the brief lends additional support to petitioners' position that Congress acted within its Commerce Clause authority in enacting the VAWA civil rights remedy. The brief explains that additional social science data, beyond that already explicitly considered by Congress in enacting the VAWA and made available after the VAWA's enactment, further documents the severe limitations gender-based violence places on women's contribution to the national economy,

as well as the direct and immediate medical and social costs caused by such violence. As we show, these studies demonstrate that gender-motivated violence (1) hinders women's participation in, and contributions to, the national economy by decreasing women's ability to secure and maintain employment and to advance and be productive in their jobs, (2) increases women's need for and use of medical services, and (3) causes lower-income families to make greater demands on public assistance programs such as welfare.

In light of the foregoing, *amici* believe that the attached brief will assist the Court in its deliberations in this case and, therefore, respectfully urge the Court to permit the brief to be filed.

Respectfully Submitted,

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INTEREST OF *AMICI CURIAE*

Amici curiae are a broad array of women's, civil rights, business, labor, medical and legal services organizations, all of which recognize the deep economic impact of violence against women and are strongly committed to eliminating gender-based violence. Each has an abiding interest in ensuring the continued viability of the civil rights remedy provided by the 1994 Violence Against Women Act ("VAWA"), 42 U.S.C. § 13981, which recognizes a federal civil right to be free of gender-motivated violence and creates a civil remedy for violations of that right. Descriptions of the individual organizations are set forth in the attached Appendix.¹

SUMMARY OF ARGUMENT

Congress enacted the VAWA in 1994 to address "the escalating problem of violence against women." S. Rep. No. 103-138, at 37 (1993). In Congress' view, the VAWA civil rights remedy, which gives victims of gender-motivated violence a federal cause of action against their attackers, was one of the "[m]ost important[]" components of this legislation. S. Rep. No. 103-138, at 38. The VAWA civil rights remedy is "truly a [classic] civil rights remedy. It redresses conduct that is motivated by bias or hatred toward a class of individuals because of a defining characteristic – gender." *Crimes of Violence Motivated By*

¹ This brief was authored by the *amici* and counsel listed on the front cover, and was not authored in whole or in part by counsel for a party. No one other than the *amici* or their counsel made any monetary contributions to the preparation or submission of this brief.

Gender: Hearings Before the Subcomm. on Civil and Constitutional Rights of the House Comm. on the Judiciary, 103d Cong. 101-02 (1993) (statement of James P. Turner, Acting Assistant Attorney General, Civil Rights Division, U.S. Department of Justice). The statute reflects "a national commitment to condemn crimes motivated by gender in just the same way that [Congress has] . . . condemn[ed] crimes motivated by race or religion." S. Rep. No. 101-545, at 41 (1990).

Congress concluded that a primary reason for making a national commitment to remedying gender-based violence was the enormous adverse effect such violence had on interstate commerce. During four years of extensive investigation and consideration of the problem of gender-motivated violence, Congress heard voluminous testimony about the substantial threat to interstate commerce posed by gender-motivated violence and about the way that such violence limits women's equal participation in the national economy. Based on this evidence, Congress found that "crimes of violence motivated by gender have a substantial adverse effect on interstate commerce, by diminishing national productivity, increasing medical and other costs, and decreasing the supply of and the demand for interstate products." H. R. Conf. Rep. No. 103-711, at 385 (1994), *reprinted in* 1994 U.S.C.C.A.N. 1839, 1853; *see also* S. Rep. No. 103-138, at 54 (1993) ("Gender-based crimes and the fear of gender-based crimes restrict[] movement, reduce[] employment opportunities, increase[] health expenditures, and reduce[] consumer spending, all of which affect interstate commerce and the national economy").

This case requires the Court to decide, *inter alia*, whether the Constitution's Commerce Clause (U.S.

Const., art. I, § 8, cl. 3) gave Congress the power to remedy what it perceived to be a significant harm to interstate commerce from gender-motivated violence. "[I]n the first and primary instance," "the political branches . . . [have] the sworn obligation to preserve and protect the Constitution in maintaining the federal balance. . . ." *United States v. Lopez*, 514 U.S. 549, 577 (1995) (Kennedy, J. and O'Connor, J., concurring). Congress took this obligation very seriously in enacting the VAWA. Petitioners' briefs and the *amicus curiae* brief of Senator Joseph R. Biden, Jr. (the statute's chief sponsor) describe the extensive legislative history of Congress' enactment of the VAWA civil rights remedy and demonstrate that Congress affirmatively and rationally concluded that the impact of gender-motivated violence on interstate commerce is substantial.

This brief does not repeat those discussions. Rather, we further demonstrate the rationality of Congress' conclusion regarding the substantial impact of gender-motivated violence on interstate commerce. We do this by presenting additional social science data documenting the severe limitations gender-based violence places on women's contributions to the national economy, as well as the direct and immediate medical and social costs caused by such violence. These well-documented studies demonstrate (1) that gender-motivated violence hinders women's participation in, and contributions to, the national economy by decreasing women's ability to secure and maintain employment and to advance and be productive in their jobs, (2) women's increased need for and use of medical services as a result of gender-based

violence, and (3) the link between gender-motivated violence and lower-income families' greater demands on public assistance programs such as welfare.

STATEMENT OF THE CASE

In September 1994, Christy Brzonkala, a freshman at Virginia Polytechnic Institute ("Virginia Tech"), was gang-raped in her dormitory by fellow students Antonio Morrison and James Crawford, both of whom were members of the school's football team. *See Brzonkala v. Virginia Polytechnic Inst. & State Univ.*, 169 F.3d 820, 827 (4th Cir. 1999) (en banc). After raping Brzonkala, Morrison warned her, "[y]ou better not have any f[uck]ing diseases." *Id.* In the months following the rape, Morrison announced publicly in the dormitory's dining hall that he " 'like[d] to get girls drunk and f[uck] the s[hit] out of them.' " *Id.* Brzonkala learned another male student had advised Crawford that he should have " 'killed the bitch' " after raping her. *Id.* at 907 (Motz, J., dissenting).

As a result of the rape, Brzonkala stopped attending classes and eventually dropped out of college. *See id.* (Motz, J., dissenting). She became depressed and withdrawn, attempted suicide, and sought psychiatric treatment from a Virginia Tech psychiatrist, who prescribed antidepressant medication. *See id.* (Motz, J., dissenting). Although Brzonkala planned to return to school, she canceled those plans when she learned Virginia Tech, after investigating the rapes, had decided to let Morrison return to campus under a " 'deferred suspension.' " *Id.* at 908 (Motz, J., dissenting).

In December 1995, Brzonkala filed suit against Morrison and Crawford, invoking the VAWA civil rights remedy, 42 U.S.C. § 13981. *See id.* (Motz, J., dissenting). The

district court dismissed the claim and a panel of the United States Court of Appeals for the Fourth Circuit reversed. *Id.* (Motz, J., dissenting); *Brzonkala v. Virginia Polytechnic Inst. & State Univ.*, 132 F.3d 949 (4th Cir. 1997). Following rehearing en banc, the Court of Appeals affirmed the district court's order, holding Congress exceeded its authority in enacting the statute. *See Brzonkala*, 169 F.3d at 826.

ARGUMENT

SOCIAL SCIENCE DATA MADE AVAILABLE AFTER THE ENACTMENT OF THE VAWA CIVIL RIGHTS REMEDY CONFIRMS CONGRESS' CONCLUSION THAT GENDER-MOTIVATED VIOLENCE SUBSTANTIALLY AFFECTS INTERSTATE COMMERCE.

A. Overview: Gender-Based Violence Harms The National Economy.

In concluding that the enactment of the VAWA civil rights remedy fell within Congress' Commerce Clause powers, the Senate Judiciary Committee found that "violent crime against women costs this country at least 3 billion . . . dollars a year" (S. Rep. No. 101-545, at 33 (1990)) and that "health care, criminal justice, and other social costs of domestic violence" total \$5 billion to \$10 billion a year (S. Rep. No. 103-138, at 41 (1993)). Social science data published since the VAWA's enactment establishes that the costs of gender-motivated violence to the national economy are even more substantial than Congress believed. In 1996, for example, the National Institute of Justice ("NIJ") concluded that domestic

violence against adults – 90% to 95% of them women² – accounts for almost 15% of total crime costs, or \$8.8 billion per year in medical and employment costs and \$58 billion per year in additional losses such as emotional harm. See Ted R. Miller et al., National Inst. of Justice, *Victim Costs and Consequences: A New Look* 1, 18-19 (1996) [hereinafter *Victim Costs*].³ The NIJ found that victim costs attributable to rape (a crime committed against women at a rate 14 times greater than men⁴) amounted to \$7.5 billion in economic harm annually and \$119 billion per year in emotional costs to victims. See *Victim Costs*, *supra*, at 1, 17, 23.

Additional post-enactment data more particularly documents the ways in which gender-motivated violence adversely impacts women's participation in the national economy, and increases women's utilization of medical services and reliance on public assistance.

² See Ariella Hyman et al., *Laws Mandating Reporting of Domestic Violence: Do They Promote Patient Well-Being?*, 273 JAMA 1781 (1995) [hereinafter *Reporting of Domestic Violence*]; Laurence A. Greenfeld, U.S. Dept. of Justice, *Violence by Intimates: Analysis of Data on Crimes by Current or Former Spouses, Boyfriends, and Girlfriends* v (1998) [hereinafter *Violence by Intimates*]; Bureau of Justice Statistics, U.S. Dept. of Justice, *Violence Between Intimates* 2 (1994).

³ The National Institute of Justice, a component of the Office of Justice Programs, is the research and development agency of the United States Department of Justice. See *Victim Costs*, *supra*, at unnumbered page following title page.

⁴ See Callie M. Rennison, U.S. Dept. of Justice, *Criminal Victimization 1998: Changes 1997-1998 with Trends 1993-98* 5 (1999).

B. Gender-Motivated Violence Severely Limits Women's Employment Opportunities And Productivity.

1. Recent studies reinforce Congress' findings that gender-motivated violence prevents women's full participation in the national economy.

Congress found that "[g]ender-based violence bars its most likely targets – women – from full partic[ipation] in the national economy" (S. Rep. No. 103-138, at 54 (1993)) and heard testimony that domestic violence alone costs the nation's employers \$3 to \$5 billion annually through absenteeism (*Women and Violence, Hearings Before the Senate Comm. on the Judiciary*, 101st Cong., 58 (1990) [hereinafter S. Hrg. 101-939], pt. 1 (statement of Helen Neuborne, executive director of NOW Legal Defense and Education Fund)). Congress concluded that gender-motivated violence physically prevents American women from fully participating in commercial activity and that domestic violence "in particular significantly impairs [women's] job performance . . . [because] [v]ictims of domestic violence are often harassed by their batterers at work, prevented from arriving to work on time, and kept from attending work altogether because of serious injuries." Johanna R. Shargel, Note, *In Defense of the Civil Rights Remedy of the Violence Against Women Act*, 106 Yale L.J. 1849, 1854 (1997); see also S. Hrg. 101-939, pt. 1, at 69 (1990) (statement of NOW Legal Defense and Education Fund); *id.* at 58, 68-69; S. Rep. No. 103-138, at 54 & n.70 (1993); S. Rep. No. 101-545, at 33 (1990).

Congress also determined that the threat of violence adversely impacts commerce by affecting women's employment decisions and conduct: "[T]he fear of gender-based violence affects the economy because it

deters women from taking jobs in certain areas or at certain hours that pose a significant risk of such violence.”⁵ S. Rep. No. 103-138, at 54 (1993); *accord* S. Rep. No. 102-197, at 53 (1991). Fear of violence also deters women disproportionately from using public transportation. *See* S. Hrg. 101-939, pt. 1, at 69 (statement of NOW Legal Defense and Education Fund) (footnote omitted). “The likelihood of crime on certain modes of public transportation also acts as a barrier to mobility, particularly for those women who have no alternative to public transportation because of economic constraints.” *Id.*; *see also id.* (as a result of the limitations fear of violence imposes on the use of public transportation, employment opportunities for women dependent on public transportation are reduced). As the Senate Judiciary Committee observed, gender-motivated violence also causes long-term economic harm in the form of “lost careers, decreased productivity, foregone educational opportunities, and long-term health problems.” S. Rep. No. 101-545, at 33 (1990).

Numerous studies completed subsequent to the enactment of the VAWA further document the extent to which gender-motivated violence reduces women’s employment opportunities, job advancement, and productivity, thereby excluding them from full participation in the national economy. As the American Psychological Association noted earlier this year: “Violence interferes with work, job training, and education and thus undermines women’s attempts at economic independence. In

⁵ This Court has similarly concluded that rape “undermines the community’s sense of security” and thereby inflicts “public injury” as well as private harm. *See Coker v. Georgia*, 433 U.S. 584, 598 (1977).

addition, pervasive violence may also leave women with physical injuries and psychological consequences that make work difficult.” American Psychological Ass’n, *Making “Welfare to Work” Really Work: Domestic Violence* (visited Oct. 18, 1999) <<http://www.apa.org/pi/wpo/domestic.html>> [hereinafter *American Psychological Ass’n Report*]. A 1998 report of the General Accounting Office (“GAO”) similarly concluded that gender-based violence prevents women from maintaining employment and adversely impacts their job performance:

[R]esearch . . . indicates that the effects of domestic violence on a woman’s job performance can make it difficult for some battered women to maintain their employment or to advance in their jobs. According to the surveys of service providers and abused women we reviewed, women may be late for work or miss work entirely for reasons such as . . . unexpected lack of child care and visible injuries. In addition, abusers’ harassment of women at work could jeopardize their jobs. . . .

Some domestic violence victims may, in addition, experience emotional or physical health problems that could potentially affect their ability to find and maintain employment. The studies we reviewed found that the women who had been abused often suffered from chronic health problems, low self-esteem, and depression and exhibited behaviors associated with post-traumatic stress disorder (PTSD).

U.S. General Accounting Office, *Domestic Violence: Prevalence and Implications for Employment Among Welfare Recipients* 8-9 (1998) [hereinafter *GAO Report*].

2. Batterers use violence to actively prevent women from entering the workforce and gaining economic independence.

Exclusion from the workplace is often the intended result, not merely an unintended consequence, of violence against women. Studies indicate that “abusers often feel threatened by a woman’s efforts to improve [herself] and become financially independent, since those efforts could provide options to women that would help them leave the abusive relationship.” *GAO Report, supra*, at 7; *see also Reporting of Domestic Violence, supra*, at 1783 (“Batterers often escalate the violence if their partners increase help-seeking measures or attempt separation”). As a result, “[h]igh percentages of abused women report[] . . . interference from their intimate partners with education, training and work.” Jody Raphael & Richard M. Tolman, Project for Research on Welfare, Work, and Domestic Violence, *Trapped in Poverty/Trapped by Abuse: New Evidence Documenting the Relationship Between Domestic Violence and Welfare* 5 (1997) [hereinafter *Trapped in Poverty/Trapped by Abuse*]; *see also id.* at 9 (“Some women on welfare who do not comply with work and/or training requirements while receiving assistance are being prevented from doing so by the direct behavior of an abusive partner, or by the indirect effects of the abuse on their health and well-being.”); Catherine K. Ruckelshaus, *Unemployment Compensation for Victims of Domestic Violence: An Important Link to Economic and Employment Security*, Special Issue 1996 Clearinghouse Rev. 209, 211 & n.7 (1996) (citing studies showing “that women on welfare are often precluded from making the transition into employment because of a male abuser and that women in job training programs or low-income jobs are often forced

to quit because of domestic violence pressures”); *American Psychological Ass’n Report, supra* (violence against women “has a direct impact in keeping welfare recipients from holding jobs and becoming self-sufficient”).

A study of women recruited from four domestic violence shelters in Chicago between February and April 1997 found that 46% of the participants’ abusers forbade the participants to get jobs. *See Trapped in Poverty/Trapped by Abuse, supra*, at 4-5 (Supp. 1998) (discussing Stephanie Riger et al., University of Ill. at Chicago, *Obstacles to Employment of Women with Abusive Partners*). The same percentage of abusers threatened to prevent participants from going to work or school. *See id.* at 5 (Supp. 1998). Other tactics employed by abusers to prevent their victims from working included threats to sabotage the car (29%), not showing up for child care (37%), lying about the children’s health or safety (34%), stealing car keys or money (46%), and refusing to give a ride to work or school (51%). *See id.* at 5 (Supp. 1998); *see also GAO Report, supra*, at 7 (abusers may “inflict[] visible signs of abuse, such as bruises, black eyes, and cigarette burns, so the women will be too embarrassed to go to training, work, or a job interview”).

Intended or not, however, the impact of gender-motivated violence on women’s employment opportunities is drastic. For example, more than half (57.8%) of women surveyed in a 1999 domestic violence study indicated that they were threatened by their partner to the point that they were afraid to go to school or work. *See Thomas Moore & Vicky Selkove, The Institute for Wisconsin’s Future, Domestic Violence Victims in Transition from Welfare to Work: Barriers to Self-Sufficiency and the W-2 Response –*

Summary Version (1999) [hereinafter *Barriers to Self-Sufficiency*]. An earlier study reported that 39.7% of women receiving AFDC who were current victims of physical abuse by an intimate partner were actively prevented by those partners from participating in educational and training opportunities (compared with 12.9% of the entire sample). See *Trapped in Poverty/Trapped by Abuse, supra*, at 4, 11, 13 (discussing William Curcio, Passaic County Bd. of Soc. Servs., *The Passaic County Study of AFDC Recipients in a Welfare-To-Work Program: A Preliminary Analysis*).⁶ In another study of female applicants for public assistance, 44% of domestic violence victims reported that their abusive ex-partners had prevented them from working. See *id.* at 1-2 (Supp. 1998) (discussing Jessica Pearson et al., Center for Policy Research, *Child Support and Domestic Violence: The Victims Speak Out*).⁷

3. Gender-based violence adversely impacts interstate commerce by causing absenteeism and lost productivity at work.

Gender-motivated violence decreases women's economic opportunities by harming their ability to work productively and causing them to lose time from work and eventually their jobs. See *Trapped in Poverty/Trapped by*

⁶ The sample for this study consisted of 846 women on AFDC in Passaic County, New Jersey, all mandatory participants in education, training and job-related activities between December 1995 and January 1997. See *Trapped in Poverty/Trapped by Abuse, supra*, at 11.

⁷ This study involved female applicants for public assistance in four Colorado welfare offices between April and December 1997. See *Trapped in Poverty/Trapped by Abuse, supra*, at 1 (Supp. 1998).

Abuse, supra, at 33 (studies "confirm that abused women do seek employment but are not able to maintain it"); Ruckleshaus, *supra*, at 211 ("Domestic abuse results in hundreds of thousands of lost work days each year").

Congress found that gender-motivated violence "takes its toll in employee absenteeism and sick time for women who either cannot leave their homes or are afraid to show the physical effects of the violence." S. Rep. No. 101-545, at 37 (1990) (footnote omitted). In connection with the enactment of the VAWA, Congress heard testimony that, according to one survey of abused women, over 9% took time off work due to their injuries and over 19% of those severely beaten were required to be absent from work due to their injuries. See S. Hrg. 101-939, pt. 1, at 58 (1990) (statement of Helen Neuborne, executive director of NOW Legal Defense and Education Fund).

Other studies available at the time of the VAWA's enactment reflect a much higher rate of absenteeism and lost work productivity as a result of domestic violence. According to a 1988 survey, "Over half of women surveyed in domestic violence shelters reported that they had missed work as a consequence of domestic violence, nearly three-fifths reported that their work was compromised by absenteeism and tardiness related to domestic violence, and nearly one-quarter reported that they lost a job partly because of domestic violence." Amy Johnson & Alicia Meckstroth, Mathematica Policy Research, Inc., *Ancillary Services to Support Welfare to Work* (Chapter on Domestic Violence) 3 (1998) [hereinafter *Mathematica Policy Research Report*] (citing Melanie Shepard & Ellen Pence, *The Effect of Battering on the Employment Status of Women*, 55 *Affilia* (1988)). Similarly, in a small sample of domestic violence victims in a large metropolitan area,

over half reported having lost at least one job and missed an average of three days of work per month as a result of domestic violence. *See id.* (citing L. Friedman & S. Couper, Victim Serv. Agency, *The Cost of Domestic Violence: A Preliminary Investigation of the Financial Cost of Domestic Violence* (1987)). Another study found that "over 70% of employed battered women are subject to telephone harassment at work by their abusers; over 60% are late to work because of their abuser; over 50% miss work because of abuse; and 70% have difficulty performing their job because of their abusive situation." Shargel, *supra*, at 1854 n.32 (citing Connie Stanley, Domestic Violence: An Occupational Impact Study 17 (July 27, 1992) (unpublished manuscript, on file with the *Yale Law Journal*)).⁸

Studies published after the enactment of the VAWA civil rights remedy similarly reflect a high rate of absenteeism and a decrease in work productivity amongst female employees subjected to domestic violence. A 1999 study conducted in Wisconsin concluded that domestic violence has "a severe negative impact on low-income women's ability to maintain jobs and to succeed at education and training efforts." *Barriers to Self-Sufficiency*, *supra*. Of the 274 domestic violence victims who completed the survey, approximately 30% reported they were fired or lost a job because of domestic violence, and 35% reported that the abuse hurt their education and training

⁸ Likewise, as the Senate Judiciary Committee observed in enacting the VAWA, half of women who are victims of rape lose their jobs or are forced to quit in the aftermath of the crime (*see* S. Rep. No. 103-138, at 54 (1993)) and the other half who remain employed are likely to experience a prolonged period of decreased productivity (*see* S. Rep. No. 101-545, at 33 (1990)).

efforts. *See id.* A study of AFDC recipients in Cook County, Illinois, found the impact of domestic violence on a woman's worklife to be even more severe: the likelihood of a woman working part- or full-time for at least one month during the study period (May through September 1997) was reduced by 87% for women who had experienced domestic violence. *See Trapped in Poverty/Trapped by Abuse*, *supra*, at 4 (Supp. 1998) (discussing Kristen Shook & Carrie Guthrie, University of Chicago, *Domestic Violence, Economic Hardship, and Employment*). Likewise, in a study of women recruited from domestic violence shelters, 52% of the participants who worked were fired or had to quit because of the abuse, and 85% missed work because of abuse. *See id.* at 5 (Supp. 1998) (discussing Stephanie Riger et al., University of Ill. at Chicago, *Obstacles to Employment of Women with Abusive Partners*).

Individual women's experiences vividly demonstrate how domestic violence jeopardizes a woman's job as well as her life:

- Mary, a counselor for people living with autism, was battered by her partner so badly she required hospitalization. After the relationship ended, Mary's ex-partner repeatedly threatened to kill her, harassed her, and stalked her. Although Mary obtained a civil protection order against her ex-partner and continued to work, she was forced to flee to another city to stay with a friend when her ex-partner came to her home and threatened to kill her. When Mary was leaving her friend's home on her way to work, she saw her ex-partner waiting for her outside. Fearful that her ex-partner might attack her again, Mary returned to her friend's house

and notified the police. Mary's employer fired her two days later, citing her poor attendance record.⁹

- Amy Hall, a teacher's assistant, was physically and mentally abused by her husband, who repeatedly threatened her life and the safety of the children at the school where she was employed. Believing her life was in danger, Amy resigned her job and moved to another state.¹⁰
- Yvette Pagan was employed as a legal secretary for a law firm. She was also the victim of constant abuse and harassment by her husband. The harassment affected Yvette's ability to concentrate on the job and perform her duties. The abuse continued to escalate and ultimately the husband physically assaulted and threatened to kill Yvette, leaving her distraught and in fear for her life. Although Yvette obtained a temporary restraining order against her husband, the abuse and harassment continued, including constant calls from her husband while she was at work. Although Yvette loved her work, she concluded she had no other choice but to leave her job, and she relocated to another state.¹¹

⁹ See Robin Runge, *Double Jeopardy: Victims of Domestic Violence Face Twice The Abuse*, 25 Hum. Rts. 19 (1998).

¹⁰ See *Hall v. Florida Unemployment Appeals Comm'n*, No. 96-3079, slip op. at 2 (Fla. Dist. Ct. App. June 27, 1997); see also Pamela Coukos, *Connections Between Domestic Violence and Sexual Harassment in the Workplace: Seeking Safety and Equality for Women* 4-5 (1998).

¹¹ See *Pagan v. Board of Review*, No. A-3964-94T1, slip op. at 2-3 (N.J. Super. Ct. App. Div. Jan. 22, 1997).

4. When domestic violence enters the workplace, it further decreases women's economic productivity.

Abuse often follows women to work, causing further loss in productivity. Current or former husbands and boyfriends commit more than 13,000 acts of violence against women at their workplace each year. See Senator Joseph R. Biden, Jr., *Safer Streets, Safer Homes: The Successes of the Violence Against Women Act and the Challenge for the Future* 69 (1999) (citing D. Amfuso, *Deflecting Workplace Violence*, 10 Personnel Journal 66, 73 (1994)). The experiences of individual women illustrate the adverse economic impact domestic violence can have when it extends to the workplace:

- "Mary Hughes" worked for many years as a legal secretary in a law firm. However, at home her husband beat her and threatened to kill her, and the abuse eventually followed her to the office. Mary's husband called her at work several times a day, was rude to the office receptionist, and so disrupted the office routine that, at one point, Mary's boss told her she might have to be fired if this continued. Eventually, when Mary's husband violated a TRO she had obtained against him, Mary relocated to another state and quit her job to escape the abuse.¹²
- Maureen Valdez worked as a pilot-car driver, driving a pilot vehicle under the direction and control of a truck driver. She was subjected to repeated physical assaults and sexual harassment by her former domestic partner, a male co-worker. After he used a

¹² See Ruckleshaus, *supra*, at 209.

hammer to smash the headlights of her car while she and her children were inside it, parked in the employer's lot, Maureen's employer fired her, purportedly because her former domestic partner might commit other violent acts at work. Soon afterward the employer allowed Maureen to return to work, but fired her again a few months later because her former domestic partner threatened to kill her if she continued to work there.¹³

5. Gender-based violence impairs women's long-term career and educational opportunities.

As the authors of a 1998 report to the U.S. Department of Health and Human Services observed, "[d]omestic violence may depress [women's] socioeconomic and job status attainment over time, compromising their ability to be consistent labor market participants." *Mathematica Policy Research Report, supra*, at 2. Domestic violence victims "are significantly more likely [than non-victims] to have been unemployed at some point, to have held more jobs, to have suffered from a range of mental and physical health problems that can affect work, and to have lower personal incomes." *Id.* at 2-3 (citing Susan Lloyd, *The Effects of Violence on Women's Employment*, 19 Law and Pol'y 139 (1997)).

Petitioner Christy Brzonkala's experience is illustrative of the long-term economic barriers caused by gender-based violence: her rape as a college freshman by two fellow students forced her to leave Virginia Tech, an

institution to which she had been paying tuition, room and board and fees, and from which she expected to earn a degree that would prepare her for the workplace. Without a college degree, Brzonkala will have a more difficult time finding a higher-income job and her future job opportunities are likely to be reduced. Even if she later enrolls in another college and obtains a degree, Brzonkala will suffer the effects of a delayed education and lower overall earnings.

The decreased educational and employment opportunities experienced by Brzonkala as a result of gender-motivated violence are consistent with testimony heard by the Senate during the VAWA hearings: rape is a leading cause of freshmen women dropping out of college, which prevents them from obtaining a degree and competing for higher-income jobs. *See* S. Hrg. 101-939, pt. 2, at 4; *see also Violence Against Women: Victims of the System: Hearings Before the Senate Comm. on the Judiciary*, 102d Cong. 243 (1991) [hereinafter S. Hrg. 102-369] (statement of National Fed'n of Bus. and Prof'l Women, Inc.) ("It is not unusual for a college woman victimized by rape to drop out of school altogether. And, even if a woman does not drop out, she may feel it necessary to interrupt her college career simply to avoid her attacker"). The Congressional testimony of other collegiate rape victims further demonstrates that the adverse impact of Christy Brzonkala's rape on her education and future earning capacity is not unusual:

- After she was raped, Amy Kaylor was unable to concentrate on her studies, dropped out of school for a quarter, and

¹³ *See* Complaint at 1-4, *Valdez v. Truss Components, Inc.*, No. CV 98-1310 (D. Or. filed Oct. 23, 1998).

ultimately lost her funding for her college education.¹⁴

- Christine Shunk transferred schools after being raped. After a second rape, she flunked classes, delaying her education.¹⁵

C. Gender-Motivated Violence Increases Women's Reliance On Medical Services.

Congress found that gender-motivated violence also exerts a substantial adverse effect on interstate commerce by increasing medical costs. *See* H.R. Conf. Rep. No. 103-711, at 385 (1994), *reprinted in* 1994 U.S.C.C.A.N. 1839, 1853; *see also* S. Rep. No. 103-138, at 54 (1993) (gender-based crimes and the fear of gender-based crimes affect interstate commerce and the national economy by increasing health expenditures). Congress heard testimony that medical costs related to domestic abuse are estimated to top \$100 million per year (*see* S. Hrg. 101-939, pt. 1, at 58 (1990) (statement of Helen Neuborne, executive director of NOW Legal Defense and Education Fund); S. Hrg. 102-369, at 240 (1991)) and that abused women are required to spend twice as many days in bed as other women; are in poor health three times as often as other women; have four times the rate of depression; and attempt suicide five and one-half times more than other women (*see* S. Hrg. 101-939, pt. 1, at 68 (1990) (statement of NOW Legal Defense and Education Fund)).

In short, as both Attorney General Janet Reno and the past president of the American Medical Association, Dr. Robert McAfee, have recognized, domestic violence is a

¹⁴ *See* S. Hrg. 102-369, at 132 (1991).

¹⁵ *See* S. Hrg. 101-939, pt. 2, at 6 (1990).

major public health issue,¹⁶ even one incident of which "can have lasting, damaging effects on women's health."¹⁷

Domestic violence directly increases medical costs by inflicting injuries on its victims that require treatment – injuries that are typically more severe than those caused by violence against men. A 1998 study found that the difference between women's and men's rates of physical assault by an intimate partner become greater as the seriousness of the assault increases, and women are more likely to experience serious physical injuries from their intimates than men. *See* Patricia Tjaden & Nancy Thoennes, National Inst. of Justice, *Prevalence, Incidence, and Consequences of Violence Against Women: Findings from the National Violence Against Women Survey* 7 (1998). The study found that while women were two to three times more likely than men to report that an intimate partner threw something that could hurt or pushed, grabbed, or shoved them, women were seven to fourteen times more likely to report that an intimate partner beat them up, choked or tried to drown them, threatened them with a gun, or actually used a gun on them. *See id.* The study also found that women who were raped or physically assaulted by a current or former intimate partner were

¹⁶ *See* Janet Reno, *Remarks of the Attorney General; Emory Univ. Inst. for Women's Studies, Rosalyn Carter Distinguished Lecture in Pub. Pol'y* (1997) ("Domestic violence is clearly a health issue."); *id.* (family violence is "a major public health problem") (citing statement of Dr. Robert McAfee).

¹⁷ *See* The Commonwealth Fund, *Women's Health Care: A Mixed Story* (last modified May 5, 1999) <<http://www.cmwf.org/media/releases/ksc%5Fwhsurvey%5FRelease0505.asp>> (citing statement of Dr. McAfee).

significantly more likely to sustain injuries than men who were raped or physically assaulted by a current or former intimate partner. *See id.* at 12.

In fact, “[m]ore women are treated for injuries resulting from domestic violence than for any other cause of injury”¹⁸ and “compared with women with no history of abuse, abused women have higher levels of health care use.”¹⁹ In particular:

- A 1996 National Institute of Justice study found that women make 1.85 million emergency department visits annually as the result of physical abuse by their partners. *See Victim Costs, supra*, at 6. This amounts to 21 percent of all emergency department visits made by women.²⁰
- Between 21% and 66% of female patients seeking general medical care report

¹⁸ Anna E. Waller et al., *Development and Validation of an Emergency Department Screening and Referral Protocol for Victims of Domestic Violence*, 27 *Annals of Emergency Med.* 755 (1996); *see also Reporting of Domestic Violence, supra*, at 1781 (“Domestic violence is believed to be the most common cause of serious injury to women”).

¹⁹ Michael A. Rodriguez et al., *Screening and Intervention for Intimate Partner Abuse: Practices and Attitudes of Primary Care Physicians*, 282 *JAMA* 468, 468 (1999).

²⁰ *See Waller, supra*, at 755. Other studies have found this percentage ranges from 17% to 30%. *See id.* *See also* L. Kevin Hamberger et al., *Physician Interaction with Battered Women*, 7 *Archives of Fam. Med.* 575 (1998) (“In emergency departments, 10% to 35% of female patients seen have been battered”); Rodriguez, *supra*, at 468 (“31% to 54% of female patients seeking emergency services . . . report experiencing intimate partner abuse”); Waller, *supra*, at 754-55, 760 (“It has been estimated that 17% to 30% of all women treated in hospital [emergency departments] are victims of domestic violence”).

experiencing intimate partner abuse. *See Rodriguez, supra*, at 468.

- “In outpatient practices, almost 1 in 4 women have been battered in the past year, and 39% to 44% of female patients have been battered in their lifetime.” Hamberger, *supra* (footnotes omitted).
- The prevalence of domestic violence among patients in ambulatory care settings has been estimated to be between 20% and 30%. *See Reporting of Domestic Violence, supra*, at 1781.
- About half of all female victims of intimate violence (*i.e.*, violence inflicted by a current or former spouse, boyfriend, or girlfriend) report an injury of some type, and about 20 percent of those seek medical assistance. *See Violence by Intimates, supra*, at 17.
- In 1994, about 1.4 million people injured as a result of intentional violence were examined in emergency departments. *See id.* at 22. About one-quarter of these injuries resulted from violence by an intimate. *See id.* Females accounted for 39% of the hospital emergency department visits for violence-related injuries in 1994, but they accounted for 84% of the persons treated for injuries inflicted by intimates. *See id.*

Rape similarly requires victims to seek medical treatment and use healthcare resources on a more frequent basis in the aftermath of an assault.²¹ “In one study of rape victims, visits to physicians increased 18% in the year of the assault, 56% in the next year, and 31% in the

²¹ As this Court has previously recognized, “[r]ape is very often accompanied by physical injury to the female and can also inflict mental and psychological damage.” *Coker v. Georgia*, 433 U.S. 584, 598 (1977).

following year, compared with pre-assault levels.” Robinette Bell et al., *The Commonwealth Fund Comm’n on Women’s Health, Violence Against Women in the United States: A Comprehensive Background Paper* 32 (1994) (citing M. Koss et al., *Deleterious Effects of Criminal Victimization on Women’s Health and Medical Utilization*, 151 *Archives of Internal Med.* 342 (1991)).

The medical costs from women’s increased reliance on the health care system to treat their physical and psychic injuries from gender-based violence is staggering. Each year between 1992 and 1996, an estimated 57,500 female victims of intimate violence incurred over \$61 million in medical expenses. *See Violence by Intimates, supra*, at 21. The Centers for Disease Control and Prevention reports that recent research in Minnesota found that women who are victims of intimate partner violence have an annual health care cost of \$1,775 more than that of women who are not victims of intimate partner violence. *See Centers for Disease Control & Prevention, October is Domestic Violence Awareness Month* (visited Oct. 18, 1999) <<http://www.cdc.gov/ncipc/dvp/fivpt/spotlite/home.htm>> (citing C. L. Wisner et al., *Intimate Partner Violence Against Women: Do Victims Cost Health Plans More?* 48 *J. of Fam. Prac.* (1999)). The National Institute of Justice estimates that rape like that perpetrated against petitioner Christy Brzonkala (or attempted rape) imposes even more healthcare costs per incident than domestic violence: a woman who is raped generally requires \$2,700 for medical and mental health care, while an incident of domestic violence on average costs the victim \$391 for medical and mental health care. *See Victim Costs, supra*, at 9. The aggregate annual cost to victims for medical and mental health care resulting from rape is about \$4 billion;

the aggregate annual cost to victims for medical and mental health care resulting from domestic violence is about \$740,000,000. *See id.* at 17.

These studies demonstrate violence against women necessitates enormous additional expenditures of the nation’s medical care resources. Particularly in an era of health provider consolidation and at a time when many public and private health care institutions operate in more than one state, these expenditures again demonstrate Congress rationally concluded that gender-based violence substantially affects interstate commerce.

D. Gender-Motivated Violence Increases Lower-Income Families’ Reliance On Public Assistance Programs.

By keeping women out of the workforce (*see supra* Part B.2), gender-motivated violence increases lower-income families’ need for public assistance as women seek to end an abusive relationship and gain economic independence to create a new life for themselves and their children.

Women victimized by gender-motivated violence may be forced to rely on public assistance because the violence excludes them from the job market,²² leaving them to “use welfare in their efforts to end the violence in their lives. . . .” Eleanor Lyon, *National Resource Ctr. On Domestic Violence, Poverty, Welfare and Battered Women:*

²² In addition, when women become unemployed because of domestic violence, they are unlikely to be found eligible for unemployment compensation and are often forced to go on welfare. *See Ruckelshaus, supra*, at 209-10.

What Does The Research Tell Us? (1998) [hereinafter *Poverty, Welfare and Battered Women*] (citing Jody Raphael, *Domestic Violence and Welfare Receipt: The Unexplored Barrier to Employment*, 3 Georgetown J. on Fighting Poverty 29-34 (1995)). For many battered women, welfare is the only income source which allows them to immediately free themselves from financial dependence on their abusers. See Diana Zuckerman & Stacey Friedman, Institute for Women's Pol'y Research, *Measuring the Costs of Domestic Violence Against Women: A Summary of the Findings of the Domestic Violence Project* 9 (1998). By "us[ing] welfare strategically in response to their partners' violence," women may gain some measure of independence from their abuser. *Poverty, Welfare and Battered Women*, *supra*; see also Louise Laurence & Roberta Spalter-Roth, Institute for Women's Pol'y Research, *Measuring the Costs of Domestic Violence Against Women and the Cost-Effectiveness of Interventions: An Initial Assessment and Proposals for Further Research* 13 (1996) ("Those leaving abusive relationships may try to substitute welfare income for income from husbands or from their own earnings during transitional periods when they attempt to establish new lives for themselves and their children"); Wendy Pollack, *Twice Victimized – Domestic Violence and Welfare "Reform,"* Special Issue 1996 Clearinghouse Rev. 329, 330 (1996) ("Without an entitlement to cash and other forms of public assistance, women may not be able to extricate themselves and their children from violent situations").²³

²³ However, women's use of welfare to free themselves from abuse may also prompt a renewal or escalation of violence by an abuser trying to regain control. See *Poverty, Welfare and Battered Women*, *supra* (citing R. Brandwein, *The Use Of Public Welfare by Family Violence Victims: Implications of New Federal*

The sheer number of domestic violence victims who are welfare recipients ensures that the economic burden imposed by gender-motivated violence on the state and federal welfare system is substantial. According to the GAO, research studies "consistently indicate that a sizable proportion of welfare recipients have been or are victims of some type of abuse by an intimate partner." *GAO Report*, *supra*, at 3. The GAO reports:

According to these studies, approximately 15 to 56 percent of the women [welfare recipients] surveyed reported that they were current victims or had been victims of physical domestic abuse in the 12 months preceding the survey, and between 55 and 65 percent reported that they had been physically abused by an intimate partner at some point in their lives. . . . These estimates are higher than estimates of the prevalence of domestic violence among the general population.

Id. at 4; see also Pollack, *supra*, at 329-30 ("Research supports what domestic violence advocates and welfare-to-work service providers have observed for years – between 50 percent and 80 percent of women receiving AFDC nationwide are past or current victims of domestic violence").

One study conducted from September 1994 to May 1995 found that women receiving AFDC were more likely to have experienced physical abuse and severe aggression, either in the past 12 months or at any point in their life, than women not on welfare. See *Trapped in Poverty/Trapped by Abuse*, *supra*, at 25 (discussing Susan Lloyd, *The*

Welfare "Reform," Paper presented at the Fifth Int'l Fam. Violence Research Conference, Durham, N.H. (1997)).

Effects of Violence on Women's Employment). Over half (55.1%) of the women in this study who reported having experienced physical aggression in the past 12 months had received AFDC benefits during that time, compared to 33.3% of the sample.²⁴ *See id.*

Another study of 734 women receiving AFDC in Massachusetts between January and June 1996 found that almost 20% of respondents had been victims of domestic violence in the 12 months preceding the survey and that about 65% had been victims of domestic violence at some point in their lives. *See GAO Report, supra*, at 5 (citing Mary Ann Allard et al., *In Harm's Way? Domestic Violence, AFDC Receipt, and Welfare Reform in Massachusetts* (1997)).

In its report to the U.S. Department of Health and Human Services, Mathematica Policy Research, Inc. found that welfare recipients are three to three-and-a-half times more likely to suffer from domestic violence than are non-recipients. *See Mathematica Policy Research Report, supra*, at 2 (citing The Commonwealth Fund, *The Health of American Women* (1993) and Susan Lloyd, *The Effects of Violence on Women's Employment*, 19 Law and Pol'y 139 (1997)).

The cycle of domestic violence also ensures that victims will be required to obtain welfare resources on a cyclical and long-term basis.²⁵ As noted in a report to the

²⁴ In addition to AFDC, women in this study who reported having been abused at some point in their lives had "significantly higher rates of receipt" of Medicaid and food stamps than women who reported never having been abused. *GAO Report, supra*, at 6.

²⁵ Women with a history of domestic violence may seek exemptions from recently-enacted restrictions – including time

Department of Health and Human Services, victims of domestic violence may cycle on and off welfare more frequently than other welfare recipients, often as a result of the nature of their relationship with an abuser. *See id.* (citing R. Brandwein, *The Use of Public Welfare by Family Violence Victims: Implications for a New Federal Welfare "Reform,"* Paper presented at the Fifth Int'l Fam. Violence Research Conference, Durham, N.H. (1997)). Moreover, among women who had received welfare for two years or longer, those with a lifetime history of victimization were significantly more likely to have had a greater number of welfare spells. *See id.* (citing Ellen Bassuk et al., *The Characteristics and Needs of Sheltered Homeless and Low-Income Housed Mothers*, 276 JAMA 640 (1996)). Among welfare recipients, domestic violence victims were more likely than non-victims to be long-term (five years or longer) welfare recipients. *See id.* (citing Ellen Bassuk et al., *The Characteristics and Needs of Sheltered Homeless and Low-Income Housed Mothers*, 276 JAMA 640 (1996)).

As a result of both the length of time which domestic violence victims are likely to remain on welfare, and the sheer number of domestic violence victims who are welfare recipients, the economic burden imposed by such violence on state and federal welfare systems (and necessarily interstate commerce) is substantial.

limits – on access to welfare benefits. *See* 42 U.S.C.A. § 602(a)(7) (West Supp. 1999) ("Family Violence Option" contained in 1996 Personal Responsibility and Work Opportunity Reconciliation Act, PL 104-193).

CONCLUSION

For the foregoing reasons, *amici* urge that the decision of the en banc Fourth Circuit Court of Appeals be reversed.

Respectfully Submitted,

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